

The Rajasthan Shops and Commercial Establishments (Employees Life Insurance) Rules, 1987

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[THE-RAJASTHAN-SHOPS-AND-COMMERCIAL-ESTABLISHMENTS-EMPLOYEES-LIFE-INSURANCE-RULES-1987 of 1987](#)

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[The Rajasthan Shops and Commercial Establishments \(Employees Life Insurance\) Rules, 1987](#)

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[G.S.R. 48. - In exercise of the powers conferred by sub-section \(1\) of section 17 of the Rajasthan Shops and Commercial Establishments \(Employees Life Insurance\) Ordinance, 1986 \(Ordinance No. 13 of 1986\), the State Government hereby makes the following rules and also orders with reference to the proviso to sub-section \(3\) of the said section, that previous publication of these rules is dispensed with, as the State Government considers that they should](#)

be brought in to force at once, namely :-

1.

Short title and Commencement.

(1)

These rules may be called the Rajasthan Shops and Commercial Establishments (Employees Life Insurance) Rules, 1987.

(2)

They shall come into force with effect from January 1, 1987.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires-

(a)

"Form" means a form appended to these rules;

(b)

"Government" means the Government of Rajasthan;

(c)

"Labour Commissioner" means an Officer appointed by the State Government as Labour Commissioner;

(d)

"Ordinance" means the Rajasthan Shops and Commercial Establishments (Employees Life Insurance) Ordinance, 1986 (Ordinance No. 13 of 1986);

(e)

"Scheme" means a Scheme framed under sub-section (1) of Section 3 of the Ordinance.

(2)

Words and expression used, but not defined in these rules shall have the meanings respectively assigned to them in the Ordinance.

3.

Prescribed Authority.

- The Joint Labour Commissioners, Deputy Labour Commissioners and Assist Labour Commissioners shall be the prescribed authority for their respective areas of jurisdiction.

4.

Powers and Duties of Inspector.

- An Inspector may inspect the registers, records and documents as may appear to him to be necessary for the purpose of satisfying himself that the provisions of the Ordinance, Rules and the Scheme or any orders issued from time to time, or the Labour Commissioner, are duly observed, he may also satisfy himself,-

(i)

that the registers and other record prescribed under the Ordinance, Rules or the Scheme are properly maintained;

(ii)

that the returns and other information to be sent under the Rules or the Scheme are correct and are being sent in time,

(iii)

that the employer has paid the contribution payable under the Ordinance in respect of all qualified employees;

(iv)

that the deduction from wages in respect of contributions are made in accordance with the provisions of the ordinance;

(v)

that the employees who are shown as qualified employees are in fact so qualified and that no qualified employee is left out of the purview of the Scheme;

(vi)

that all qualified employees have filed their nominations in accordance with the provisions of the Scheme;

(vii)

that benefits under the Scheme are paid to the persons nominated in accordance with the Scheme and to none else and that claims for benefits are genuine;

(viii)

that the provisions of the Ordinance, Rules and the Scheme any order issued by Government or Labour Commissioner are duly observed.

(2)

An Inspector shall also have the power to-

(i)

seize or take copies of registers or records as he may consider necessary in respect of an offence under the ordinance/Rules, which he has reason to believe, has been committed by an employer;

(ii)

require an employer to produce at the premises of the establishment or at his office any register or record which he may consider necessary for enforcing the provisions of the ordinance, Rules or the Scheme.

5.

Register and Records to be maintained by an employer.

(1)

Every employer of an establishment to which the ordinance applies shall maintain a register in the "Form" appended to these rules.

(2)

The Visit book as prescribed under sub-rule (10) of Rules 22 of the Rajasthan Shops and Commercial Establishment Rules, 1959, shall be treated as an Inspection Book for the purpose of these Rules and it shall be produced by the employers and when so required by the Inspector for recording his remarks as he deems proper.

Form

[See sub-rule (1) of Rule 5]

Register of qualified employees

S. No.

Name of employees

S

Designation

Address

Date of birth

1

2

3

4

5

6

Whether date of birth is verified and if so from
what document

Date of joining the establishment

Date from which contributions are being paid

Whether the employee has made a nomination as per
the scheme. Give name and address of nominee

7

8

9

10

Date of death of employees (if applicable)

Date of claim for benefit

Date on which claim was checked by Inspector

Date on which claim was sent to Life Insurance
Corporation.

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